

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN TRANSFORMERS AND
COMPONENTS THEREOF

Inv. No. 337-TA-1517

ORDER NO. 6: SETTING THE PROCEDURAL SCHEDULE

(September 16, 2026)

On September 15, 2026, the parties submitted a proposed procedural schedule pursuant to Order No. 5. The proposed schedule was discussed at a preliminary conference held on September 16, 2026. This investigation shall be conducted in accordance with the following schedule:

Event	Date
File identification of expert witnesses, including their expertise and curriculum vitae	October 21, 2026
Complainant files list of products it plans to rely upon to satisfy the domestic industry requirement, where applicable	October 28, 2026
<i>Deadline for initial responses to contention interrogatories on issues for which the responding party bears the burden of proof</i>	November 18, 2026
File initial disclosure of asserted trade secrets and proprietary information with reasonable particularity ¹	November 18, 2026

¹ Consistent with the best practices identified in the Federal Judicial Center’s Trade Secret Case Management Guide, the identification of trade secrets shall be formatted as a numbered list, with each number constituting a separate trade secret alleged to have been misappropriated. See Federal Judicial Center’s Trade Secret Case Management Guide at § 4.4.2, available at <https://www.fjc.gov/content/379485/trade-secret-case-management-judicial-guide> (last accessed May 7, 2026). The identification should be sufficient to “(1) put a [respondent] on notice of the nature of the [complainant’s] claims and (2) allow the [respondent] to discern the relevancy of any requested discovery to its trade secrets.” *Id.* at § 4.5 (citing cases). If the asserted trade secrets are compilations or combinations, the particular combination of components, steps, or information should be specified, including the identification of any components, steps, or

Event	Date
<i>Deadline for initial responses to contention interrogatories on issues for which the responding does not bear the burden of proof</i>	December 9, 2026
File final disclosure of asserted trade secrets and proprietary information with reasonable particularity ²	January 13, 2027
<i>Deadline for final responses to contention interrogatories on issues for which the responding party bears the burden of proof</i>	January 20, 2027
<i>Deadline for final responses to contention interrogatories on issues for which the responding does not bear the burden of proof</i>	January 27, 2027
Deadline for parties to file positions on numerical limits, if any, on asserted trade secrets (parties to meet and confer at least 5 business days in advance)	February 3, 2027
<i>Fact Discovery cutoff and completion</i>	February 4, 2027
Deadline to submit letters regarding fact discovery disputes	February 25, 2027
File joint statement identifying accused products	February 26, 2027
<i>Exchange initial expert reports</i>	March 11, 2027
File tentative list of witnesses a party will call to testify at the hearing, with an identification of each witness' relationship to the party	March 18, 2027
<i>Exchange rebuttal expert reports</i>	April 1, 2027
<i>Expert discovery cutoff and completion</i>	April 15, 2027
Deadline to submit letters regarding expert discovery disputes	April 20, 2027
Motions to Strike (see Ground Rule 9.1)	April 20, 2027
One-day mediation session	No later than April 21, 2027

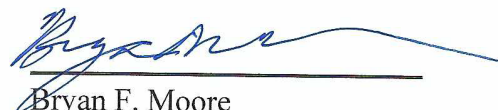
information that are not asserted to be part of the trade secret. *Id.* at § 4.4.4 (citing cases). The use of “and/or” in defining combination or compilation trade secrets, to indicate that some unspecified subset of the identified combination may be a trade secret, should be avoided. The citation to documents is encouraged, but citation to a document(s) or file(s) does not relieve Complainant of the obligation to provide a reasonably particular narrative identification of each asserted trade secret.

² Amendment to the initial identification of trade secrets shall only be made upon agreement of the parties or by a filing a motion for leave and demonstrating good cause. If the parties agree to amend the identification of trade secrets, they do not need to file a motion.

Event	Date
Submit joint report on mediation	Within five business days following mediation
Deadline for filing summary determination motion	April 22, 2027
<i>Exchange of exhibit lists among the parties</i>	April 26, 2027
<i>Complainant and respondent serve proposed direct exhibits (including witness statements) and identify physical exhibits</i>	April 30, 2027
<i>Staff serves proposed direct exhibits (including witness statements) and identifies physical exhibits</i>	May 5, 2027
File joint stipulation regarding representative accused products and representative domestic industry products, where applicable	May 7, 2027
<i>Serve proposed rebuttal exhibits (including witness statements) and identify rebuttal physical exhibits</i>	May 14, 2027
Complainant and respondent file pre-hearing statements and briefs	May 18, 2027
<i>Exchange objections to witness statements</i>	May 21, 2027
Deadline for motions <i>in limine</i> (“MILs”) and high priority objections (“HPOs”)	May 25, 2027
File joint list of unopposed exhibits	May 27, 2027
File requests for receipt of evidence without a sponsoring witness	June 2, 2027
Submit witness statements (and exhibits cited therein) to Box	June 3, 2027
Staff files pre-hearing statement and brief	June 4, 2027
Deadline for complainant’s and respondents’ responses to MILs and HPOs	June 4, 2027
File responses to requests for receipt of evidence without a sponsoring witness	June 9, 2027
Deadline for Staff’s responses to MILS and HPOs	June 10, 2027
Pre-hearing conference	June 21, 2027, at 9:00 a.m.
Evidentiary Hearing	June 21–25, 2027
File final exhibit list	July 2, 2027

Event	Date
Complainant and respondent file post-hearing initial briefs with the Secretary and submit final exhibits with the Administrative Law Judge	July 9, 2027
Commission Investigative Attorney files post-hearing initial brief	July 19, 2027
Complainant and respondent file post-hearing responsive briefs	July 23, 2027
Commission Investigative Attorney files post-hearing responsive brief	July 30, 2027
Final Initial Determination on violation	October 19, 2027
Target date for completion of investigation (18-month target date)	February 21, 2028

SO ORDERED.


 Bryan F. Moore
 Administrative Law Judge